

Our ref: 78 Lockwood Road, Erskine Park - Data Centre (SSD-82211208)

Mr Michael Dyer
Project Director
STACK Infrastructure Australia Pty Ltd
201 Sussex Street
SYDNEY NSW 2000

11 April 2025

Subject: Planning Secretary's Environmental Assessment Requirements – Industry Specific

Dear Mr Dyer

Please find attached a copy of the Planning Secretary's environmental assessment requirements (SEARs) for the 78 Lockwood Road, Erskine Park - Data Centre (SSD-82211208).

Based on the information provided in your application, industry-specific SEARs have been issued for your project.

Please contact the Department of Planning, Housing and Infrastructure (the Department) as soon as possible if your project changes. If the changes are significant, a scoping report may be required and the SEARs may need to be re-issued. The Department may also need to consult with relevant agencies in accordance with Part 8 of the Environmental Planning and Assessment Regulation 2021 (EP&A Regulation)

If required, the Planning Secretary may modify your SEARs to ensure the environmental assessment of the project covers all relevant matters and is consistent with contemporary assessment practice.

Your SEARs will expire two years from the date of issue (or the date they were last modified) unless the Planning Secretary has granted an extension. If you would like to seek an extension, you should contact the Department at least three months prior to the expiry date.

If your development application (DA) is not submitted within two years (or by the agreed extension date), you will need to make a new application for SEARs to progress your project.

Additional assessment requirements

The Department has identified assessment requirements additional to those attached. These requirements, in addition to the industry-specific SEARs, are provided below and should be taken to be the collective SEARs for the project.

- Hazards and risk – The EIS must demonstrate the relevant aspects of the *FM Global Property Loss Prevention Data Sheet 5-32 – Data Centres and Related Facilities* have been considered and could be implemented as part of the development. It must also demonstrate the development would comply with the relevant aspects of the following standards:
 - AS/NSS 4681 – Storage and handling of Class 9 (miscellaneous) dangerous goods and articles
 - AS IEC 62619 – Storage cells and batteries containing alkaline or other non-acid electrolytes
 - Safety requirements for secondary lithium cells and batteries, for use in industrial applications
 - AS 1940 – Storage and handling of flammable and combustible liquids
- Plant and equipment systems – The EIS must:
 - include a comprehensive options analysis of all commercially available cooling and back-up power systems
 - provide a detailed overview of the proposed data hall cooling system including number and details of associated plant and equipment, and the energy and water demands of the proposed data hall cooling system
 - provide demonstration the development can achieve a NABERS 3 stars energy rating or higher including the Power Usage Effectiveness (PUE) calculations of plant and equipment required for the operation of a data centre.
- Operational noise – The EIS must include details of manufacturer specifications for plant and equipment and noise source inventory (demonstrating worst-case modelling of plant and equipment for each assessment period, including testing of any back-up power system and critical power failure scenario)
- Water treatment – The EIS must include details on all plant and equipment and the relevant processes involved in any on-site water treatment for the re-use of water for the data centre operations such as cooling systems. The EIS must include an assessment of the impact of any treatment plant.
- Urban heat island effect – The EIS must evaluate the impact of heat rejection on habitable rooms and communal open spaces, including those of neighbouring properties.
- Consultation – The EIS must be informed by direct consultation with Penrith City Council regarding the design of the development and potential visual impacts.

Preparing your EIS

Your environmental impact statement (EIS) must be prepared having regard to the Department's *State Significant Development Guidelines*, including the *Preparing an Environmental Impact Statement Guideline*. All relevant guides for State significant projects that are referenced in the SEARs are available [here](#).

During the preparation of your EIS, you are required to consult with various parties, including the Department and any relevant agencies, in accordance with *the Undertaking Engagement Guidelines for State Significant Projects*. For more information, please visit the [Prepare EIS page](#) on the NSW planning portal. Agency contact details can be found [here](#).

You will need a Registered Environmental Assessment Practitioner (REAP) to declare that your EIS meets certain standards in relation to its completeness, accuracy, quality and clarity before it is submitted to the Department, as per Division 5 of Part 8 of the EP&A Regulation. A pro forma declaration can be found in [Appendix B of the Preparing an Environmental Impact Statement Guideline](#). For more information on the REAP Scheme, please see the REAP guidelines and the frequently asked questions on the Department's [website](#).

Biodiversity Development Assessment Report

Any DA that is required to be submitted with a Biodiversity Development Assessment Report must use the template available at: <https://www.environment.nsw.gov.au/research-and-publications/publications-search/guidance-for-the-biodiversity-development-assessment-report-template>.

Lodging your development application (DA)

Once you submit your DA and accompanying EIS, we will check it for completeness to confirm it addresses the requirements in Part 8 of the EP&A Regulation. **The EIS must include a comprehensive description and assessment of the likely impact of all stages, infrastructure and activities that form part of the development, as required under section 192 of the EP&A Regulation.**

To minimise delays, please contact the Department at least two weeks before you submit your DA and EIS to confirm the DA fee payment arrangements.

Please note that **your DA is not taken to be lodged until the DA fee has been paid.**

Information needed to determine the DA fee

Your DA will need to be accompanied by an Estimated Development Cost (EDC) Report supporting the estimated development cost for your project. You must ensure that the information in the report is consistent with the information provided in your DA form and the Department's EDC [requirements](#).

Once you submit your EDC Report, we will check it for completeness against the requirements of the EP&A Regulation and the relevant Planning Circular.

If your project involves marinas, extractive industries or any subdivision of land, you must also ensure that your report includes a breakdown of estimated costs associated with these components.

Public exhibition requirements

When you contact us regarding the DA fee payment arrangements, we will also confirm the consultation and public exhibition arrangements.

Community Consultation

The Department wishes to emphasise the importance of effective and genuine community consultation. A comprehensive open and transparent community consultation engagement process must be undertaken during the preparation of the EIS. This process must ensure that the community is provided with a good understanding of what is proposed (including a description of any potential impacts) and they are actively engaged in issues of concern to them. **Please note, your EIS must include clear evidence that this consultation has been undertaken and justification for the proposed consultation method(s) used.**

Matters of National Environmental Significance

Any development likely to have a significant impact on matters of National Environmental Significance will require approval under the Commonwealth *Environment Protection and Biodiversity Conservation Act 1999* (EPBC Act). This approval is in addition to approvals required under NSW legislation.

It is your responsibility to contact the Australian Government Department of Climate Change, Energy, the Environment and Water to determine if you need approval under the EPBC Act (<https://www.dcceew.gov.au/> or (02) 6274 1111).

If you have any questions, please contact Shaun Williams on (02) 8275 1345 or via email at shaun.williams@planning.nsw.gov.au.

Yours sincerely,



Joanna Bakopanos

A/Directory

Industry Assessments

as delegate for the Planning Secretary